

26CMCV00539 26CMCV00539

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-06-24

Motion: DEFENDANT'S MOTION TO QUASH AND DEMURRER

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Case Number: 26CMCV00539 Hearing Date: June 24, 2026 Dept: A

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

SUSANA REYNAGA,

Plaintiff,

vs.

GRACELIGHT

COMMUNITY HEALTH,

Defendant.

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CASE NO: 26CMCV00539

[TENTATIVE]

ORDER RE: DEFENDANT'S MOTION TO QUASH AND DEMURRER

Dept.

A

DATE:

June 24, 2026

TIME:

8:30 A.M.

COMPLAINT

FILED: 03/20/2026

TRIAL:

None set

MOVING PARTY: Defendant

Gracelight Community Health

RESPONDING PARTY: Plaintiff

Susana Reynaga

1. Background

This is an employment discrimination action. Plaintiff

Susana Reynaga ("Plaintiff") alleges that she was hired by defendant Gracelight

Community Health ("Defendant") on April 1, 2024. Plaintiff alleges that in May

of 2025, she was diagnosed with back-related medical conditions and placed on

medical leave. Plaintiff alleges that her physician provided a return-to-work

date of December 1, 2025, but that Defendant demanded that Plaintiff return to

work by an earlier date, and terminated Plaintiff on October 31, 2025 when this

did not occur.

2. Request for Judicial Notice

Plaintiff requests that the court take judicial notice

of her complaint in this action and the amended proof of service filed on June

9, 2026.

A court may take judicial notice of the existence of documents in its own file, but may only take judicial notice of the facts contained within judgments, orders, findings of fact, or conclusions of law. (In re Kenneth D. (2024) 16 Cal.5th 1087, 1106.)

The court takes judicial notice of the existence of the requested documents, but not of the facts contained therein.

3. Discussion

a. Motion to Quash

Defendant moves to quash service of the summons and complaint upon it. Defendant contends that the proof of service does not identify the person served by name, and therefore does not conclusively establish that the person served was apparently in charge at the time. In opposition, Plaintiff contends that Defendant was properly served.

Under Code of Civil Procedure § 418.10, a defendant may move to quash service of summons “on or before the last day of his or her time to plead or within any further time that the court may for good cause allow” on the ground of lack of jurisdiction over them. Improper service of process prevents a court from exercising jurisdiction over a defendant. (Stancil v. Superior Court (2021) 11 Cal.5th 381, 392-393.) A defendant has 30 days after the service of the summons to file a responsive pleading. (Code Civ. Proc., §

412.20, subd. (a)(3).)

"When a defendant

challenges the court's personal jurisdiction on the ground of improper service

of process 'the burden is on the plaintiff to prove the existence of

jurisdiction by proving, inter alia, the facts requisite to an effective

service.'" (Summers v. McClanahan, (2006) 140 Cal.App.4th 403, 413.) A

person may be personally served by personally handing them a copy of the

summons and complaint or by personally delivering such a copy to an agent of

that person authorized to accept service. (American Express Centurion Bank v. Zara (2011) 199 Cal.App.4th 383, 389 (American Express).) A proof of service containing a declaration from a registered

process server invokes a presumption of valid service. (Evid. Code § 647.)

There is no requirement that the true legal name of

the person served by substitute service be used in a proof of service,

particularly given the common circumstance wherein the person receiving

substitute service on behalf of another refuses to give their name or uses a

pseudonym. (Trackman v. Kenney (2010) 187 Cal.App.4th 175, 184.)

The proof of service filed on April 15, 2026 states that Defendant was served

by substitute service upon Jane Doe, an employee apparently in charge at

Defendant's business, and that service was conducted by a registered process

server. This is sufficient to invoke a presumption of valid service. Contrary

to Defendant's argument, it is entirely possible to determine that a person

appears to be in charge at a business location without receiving their name or job title.

Defendant does not provide a declaration or any other

evidence supporting its contention that service was inadequate. In connection

with its reply, Defendant provides the declaration of attorney Keyana T. Young,

who states that Defendant has been unable to identify the recipient without a

name or title provided on the proof of service. (Young Decl. ¶ 3.) However, this

is not sufficient to overcome the presumption of valid service, as it is not

evidence that they were not properly served. (See *Palm Property Investments,*

LLC v. Yadegar (2011) 194 Cal.App.4th 1419, 1428.)

The court will therefore deny Defendant's motion to

quash.

b. Demurrer

Simultaneously to its motion to quash, Defendant

demurs to all ten causes of action in the complaint. A defendant may make a motion to quash and simultaneously answer, demur

or file another responsive pleading. (Code Civ. Proc., § 418.10, subd. (e).)

Defendant contends that the complaint fails to allege that Plaintiff engaged in

an adequate interactive process, failed to identify a reasonable accommodation

that Defendant denied, and failed to allege facts showing that Defendant

discriminated against her. In opposition, Plaintiff contends that the complaint is adequately pled.

A demurrer for

sufficiency tests whether the complaint states a cause of action. (Hahn v.

Mirza (2007) 147 Cal.App.4th 740, 747 (Hahn).) When considering

demurrers, courts read the allegations liberally and in context. (Taylor v.

City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216,

1228.) In a demurrer proceeding, the defects must be apparent on the face of

the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co.

(2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleadings alone and not

the evidence or other extrinsic matters. Therefore, it lies only where the

defects appear on the face of the pleading or are judicially noticed." (SKF

Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) "The only issue

involved in a demurrer hearing is whether the complaint, as it stands,

unconnected with extraneous matters, states a cause of action." (Hahn, supra,

147 Cal.App.4th at p. 747.)

The ultimate facts alleged in the complaint must be

deemed true, as well as all facts that may be implied or inferred from those

expressly alleged. (Marshall v. Gibson, Dunn & Crutcher (1995) 37

Cal.App.4th 1397, 1403; see also Shields v. County of San Diego

(1984) 155 Cal.App.3d 103, 133 [stating, “[o]n demurrer, pleadings are read liberally and allegations contained therein are assumed to be true.”]) “The court does not, however, assume the truth of contentions, deductions or conclusions of law. [Citation.]” (Durell v. Sharp Healthcare (2010) 183 Cal.App.4th 1350, 1358.)

1. The first cause of action for disability

discrimination and third cause of action for failure to reasonably accommodate, are adequately pled

An

employer may not engage in an adverse employment action against a person based on that person’s physical disability or medical condition unless the employee cannot perform their essential duties even with reasonable accommodations.

(Gov. Code, § 12940, subd. (a).)

Defendant contends that the complaint does not

adequately allege that Plaintiff’s request or series of requests for medical

leave constituted a request for a reasonable accommodation. However, a leave of

absence may be a reasonable accommodation if, after the leave, the employee may

return to work, with or without other reasonable accommodations. (Zamora v.

Security Industry Specialists, Inc. (2021) 71 Cal.App.5th 1, 41-42.) An

employer is not required to provide an indefinite leave of absence as a

reasonable accommodation. (Id. at p. 42.)

The complaint alleges that Plaintiff was originally

scheduled to return to work in August 2025, but that her medical leave was

extended to December 2025. This is a finite and definite leave of absence,

despite the extension, and therefore a reasonable trier of fact could determine

that Plaintiff's request for medical leave was a request for a reasonable

accommodation. Plaintiff's first cause of action for disability discrimination

is adequately pled.

The court will therefore overrule Defendant's demurrer

to the first and third causes of action.

2. The second cause of action for failure to engage in

interactive process is adequately pled

Government Code § 12940, subd. (n) requires that an

employer engage in a good faith interactive process with employees to determine

effective reasonable accommodations upon receiving a request for reasonable

accommodations by an employee with a medical condition or physical or mental

disability.

The complaint alleges that Plaintiff obtained a

return-to-work date from her physician of December 1, 2025, which she provided

to Defendant, but that Plaintiff received correspondence from Defendant

directing her to return to work by a specified deadline which she was unable to meet. Defendant contends that the complaint fails to allege that Plaintiff responded to Defendant's return-to-work correspondence and that, by providing Plaintiff with medical leave between May 2025 and August 2025, Defendant adequately engaged in the interactive process.

"It is for the trier of fact to determine whether

defendant's responses to plaintiff were sufficiently 'interactive'." (Ravel

v. Hewlett-Packard Enterprise, Inc. (E.D. Cal. 2017) 228 F.Supp.3d

1086, 1098.) A reasonable trier of fact could determine that Defendant's

responses to Plaintiff were not reasonably interactive and that Plaintiff was

not required to respond to Defendant's direction to return to work because the

aforementioned direction did not constitute an attempt to find a reasonable

accommodation and therefore was not part of the interactive process.

The court will therefore overrule Defendant's demurrer

to the second cause of action.

3. The fourth and fifth causes of action for FEHA

retaliation and CFRA retaliation are adequately pled

In order to establish a prima facie case of

retaliation under FEHA, a plaintiff must show that: (1) they engaged in a

protected activity; (2) the employer subjected them to an adverse employment

action; and (3) a causal link existed between the protected activity and the employer's action. (Cornell v. Berkeley Tennis Club (2017) 18 Cal. App. 5th 908, 908.) To establish the same under the California Family Rights Act ("CFRA"), a plaintiff must show that (1) the defendant was an employer covered by CFRA; (2) the plaintiff was an employee eligible to take CFRA leave; (3) the plaintiff exercised her right to take leave for a qualifying CFRA purpose; and (4) the plaintiff suffered an adverse employment action, such as termination, fine, or suspension, because of her exercise of her right to CFRA leave. (Yphantides v. County of San Diego (S.D. Cal. 2023) 660 F.Supp.3d 935, 958.)

Defendant contends that the complaint fails to allege that Plaintiff engaged in protected activity. However, seeking an accommodation constitutes protected activity. (Ibid.) As previously noted, Plaintiff has adequately alleged that she requested an accommodation from Defendant. Therefore, Plaintiff has adequately alleged the fourth and fifth causes of action for FEHA and CFRA retaliation.

The court will therefore overrule Defendant's demurrer to the fourth and fifth causes of action.

4. The sixth cause of action for failure to prevent discrimination is adequately pled

To

state a claim for the failure to prevent discrimination,

harassment, and retaliation, a plaintiff must show that (1) the plaintiff

was subjected to discrimination, harassment, and retaliation, (2) the

employer failed to take all reasonable steps to prevent discrimination,

harassment, and retaliation, and (3) the employer's failure cause the

plaintiff to suffer injury, loss, harm, or damage. (Govt. Code, § 12940,

subd. (k).) This claim is dependent on a claim of actual discrimination. (Scotch v. Art Institute of

California (2009)

173 Cal.App.4th 986, 1021.)

Defendant contends that the complaint fails to allege facts

stating that she was subject to discrimination or that Defendant failed to take

all reasonable steps to prevent discrimination. However, as previously noted,

Plaintiff has adequately alleged discrimination. Additionally, as previously

noted, a reasonable trier of fact could find that Defendant failed to provide

reasonable accommodations and therefore that Defendant failed to take all

reasonable steps to prevent discrimination.

The court will therefore overrule Defendant's demurrer

to the sixth cause of action.

5. The seventh cause of action for whistleblower

retaliation fails

Under

Labor Code § 1102.5, subdivision (b), it is prohibited to retaliate against an employee for disclosing information “to a government or law enforcement agency, to a person with authority over the employee or another employee who has the authority to investigate, discover, or correct the violation or noncompliance, or for providing information to, or testifying before, any public body conducting an investigation, hearing, or inquiry, if the employee has reasonable cause to believe that the information discloses a violation of state or federal statute, or a violation of or noncompliance with a local, state, or federal rule or regulation.” Disclosure of internal personnel matters does not constitute whistleblowing. (*Patten v. Grant Joint Union High School Dist.* (2005) 134 Cal.App.4th 1378, 1384-1385 (overruled in part on other grounds).) However, reporting harassment does constitute whistleblowing. (*Mathews v. Happy Valley Conference Center, Inc.* (2019) 43 Cal.App.5th 236, 263.)

The

complaint alleges that Defendant’s decision to terminate Plaintiff was substantially motivated by Plaintiff’s reports and complaints of potentially unlawful conduct. However, the complaint does not allege any facts indicating that Plaintiff made reports or complaints of unlawful conduct. Plaintiff contends that by requesting reasonable accommodations, Plaintiff placed Defendant on notice that its conduct violated FEHA; however, Plaintiff has only alleged

that Defendant violated FEHA by terminating Plaintiff, and therefore Plaintiff

has not alleged that any conduct prior to Plaintiff's termination violated

FEHA. As such, there was no alleged conduct for Plaintiff to make complaints or

reports of prior to Plaintiff's termination.

The

court will therefore sustain Defendant's demurrer to the seventh cause of

action, with leave to amend.

6. The eighth cause of action for wrongful termination

is adequately pled

"The elements of a claim for wrongful discharge in

violation of public policy are (1) an employer-employee relationship, (2) the

employer terminated the plaintiff's employment, (3) the termination was

substantially motivated by a violation of public policy, and (4) the discharge caused

the plaintiff harm." (Garcia-Brower v. Premier Automotive Imports of CA, LLC

(2020) 55 Cal.App.5th 961, 973.

Defendant contends that the complaint fails to plead

any facts that Defendant intentionally created or knowingly permitted acts or

working conditions that violated public policy. However, as previously noted,

Plaintiff has adequately alleged that she was terminated based on

discrimination against her physical disability. This may support a cause of

action for wrongful termination in violation of public policy. (Prue v.

Brady Co./San Diego, Inc. (2015) 242 Cal.App.4th 1367, 1379-1380.)

The court will therefore overrule Defendant's demurrer

to the eighth cause of action.

7. The ninth cause of action for declaratory relief

fails

"The

fundamental basis of declaratory relief is the existence of an actual, present controversy over

a proper subject." (City of Cotati

v. Cashman (2002) 29 Cal.4th 69,

79.) "Declaratory relief operates prospectively to declare future rights,

rather than to redress past wrongs." (Canova v.

Trustees of Imperial Irrigation Dist. Employee Pension Plan (2007)

150 Cal.App.4th 1487, 1497.)

Plaintiff seeks declaratory relief in the form of a

declaration that her actual or perceived disabilities or medical conditions

were substantial motivating factors in the desire to terminate her employment.

This is not a proper subject of declaratory relief.

The court will therefore sustain Defendant's demurrer

to the ninth cause of action, with leave to amend.

8. The tenth cause of action for injunctive relief

fails

Injunctive relief is a remedy, not a separate cause of

action. (Church Mutual Ins. Co., S.I. v. GuideOne Specialty Mutual Ins. Co.

(2021) 72 Cal.App.5th 1042, 1051, fn. 1.) The court will therefore sustain

Defendant's demurrer to the tenth cause of action, without leave to amend.

4. Conclusion

Based on the foregoing, the court DENIES Defendant's

motion to quash service of the summons and complaint.

The court SUSTAINS IN PART Defendant's demurrer to the

complaint. The court SUSTAINS Defendant's demurrer to the seventh and ninth

causes of action, with leave to amend. The court SUSTAINS Defendant's demurrer

to the tenth cause of action, without leave to amend. The court OVERRULES

Defendant's demurrer to the first, second, third, fourth, fifth, sixth, and

eighth causes of action.

Defendant

is ordered to give notice.

IT

IS SO ORDERED.

DATED: June 24, 2026

Hon. Elizabeth L. Bradley

Judge of the Superior Court